IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 80(1) of the Labour Act [*Chapter 28:01*], approved the publication of the Collective Bargaining Agreement set out in the Schedule which further amends the agreement published in Statutory Instrument 152 of 1990, registered in terms of section 79 of the LabourAct [*Chapter 28:01*].

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE MINING INDUSTRY

COLLECTIVE BARGAINING AGREEMENT:
(MINE WORKERS)

Made and entered into in accordance with the provisions of the Labour Act [*Chapter 28:01*], between the Chamber of Mines of Zimbabwe (hereinafter referred to as the employers' organisation), on the one part, and the Associated Mine Workers Union of Zimbabwe (hereinafter referred to as "the trade union"), on the other part, being parties to the National Employment Council for the Mining Industry.

The National Employment Council for the Mining Industry have today, 19th May, 2021, reached an agreement to raise the NEC minimum rates/earnings for the Mining Industry by 11.3636%.

1. Rates of pay

The principal agreement, Statutory Instrument 152 of 1990, is amended by the deletion of Clause 1(a) and 1(b) of Schedule E and the substitution of:

1. (a) Subject to the provisions of paragraph 1(b) the basic minimum earnings payable to employees with effect from 1st April, 2021, to 30th June, 2021, shall be as per the attached Schedules.

The agreement carries an Exemption Clause as stipulated in the principal agreement, Statutory Instrument 152 of 1990, Clause 6 (Exemptions, Variations and Savings).

Those employers who are able to pay more than the NEC minimums are encouraged to do so.

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The dollar value principle will apply.

NATIONAL EMPLOYMENT COUNCIL FOR THE MINING INDUSTRY Rates of Pay from 1st April, 2021 to 30th June, 2021					
GRADE	MINIMUM PER MONTH AS AT 31ST MARCH, 2021 ZWL	NEW MINIMUM PER MONTH AS AT 1ST APRIL, 2021 ZWL	PORTION OF MINIMUM PAYABLE IN USD AS AT 1ST APRIL, 2021 USD	NEW MINIMUM PER SHIFT ZWL	DOLLAR VALUE INCREASE ZWL
1	22 000,00	24 500,00	145,00	942,31	2 500,00
2	22 175,69	24 695,65	146,00	949,83	2 519,96
3	22 266,24	24 796,49	147,00	953,71	2 530,25
4	22 657,27	25 231,96	149,00	970,46	2 574,69
5	23 333,39	25 984,92	153,00	999,42	2 651,53
6	24 428,80	27 204,80	161,00	1 046,34	2 776,00
7	25 429,27	28 318,96	167,00	1 089,19	2 889,69
8	27 696,52	30 843,86	181,00	1 186,30	3 147,34
9	33 597,24	37 415,10	220,00	1 439,04	3 817,86
10	37 667,40	41 947,79	247,00	1 613,38	4 280,39
11	44 131,49	49 146,44	289,00.	1 890,25	5 014,95
12	47 866,91	53 306,34	314,00	2 050,24	5 439,43
13	51 025,74	56 824,12	335,00	2 185,54	5 798,38
	INCREASE%			11 3636%	

The portion in USD shall be converted to ZWL at the prevailing interbank exchange rate at the time of payment and deducted from the respective minimum wage to determine the balance to be paid in ZWL.

For clarity, the total earnings for each grade will be equal to the respective minimum for that grade.

Non-foreign currency generating companies are excluded from the requirement to pay in US dollars.

2. Service increments

The basic minimum earnings, prescribed in paragraph 5 shall be increased as specified hereunder in respect of employees whose total length of service with the same employer amounts to two or more years.

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Employees whose total length of service with the same employer exceeds—

SERVICE YEARS	PERCENTAGE INCREASE	ACCUMULATED PERCENTAGE INCREASE
After 2 years	2%	2%
After 3 years	1%	3%
After 4 years	1%	4%
After 10 years	2%	6%
After 15 years	2%	8%
After 20 years	2%	10%
After 25 years	2%	12%

Note: Employers are to ensure that the following deductions are implemented and shortfalls back-dated to April, 2021.

1. Mining Industry Pension Fund (M.I.P.F).

2. NEC dues 0.3% of grade minimum.

3. AMWUZ subscriptions for members shall be 3% of an employee' basic salary until further notice.

GRADE	WAGE ZWL	2 YRS 2% (ZWL)	3 YRS 3%(ZWL)	4 YRS 4%(ZWL)	10 YRS 6%(ZWL)	15 YRS 8%(ZWL)	20 YRS 10%(ZWL)	25 YRS 12%(ZWL)
1	24,500.00	490.00	735.00	980.00	1470.00	1960.00	2450.00	2940.00
2	24,695.65	493.91	740.87	987.83	1481.74	1975.65	2469.57	2963.48
3	24,796.49	495.93	743.89	991.86	1487.79	1983.72	2479.65	2975.58
4	25,231.96	504.64	756.96	1009.28	1513.92	2018.56	2523.20	3027.84
5	25,984.92	519.70	779.55	1039.40	1559.10	2078.79	2598.49	3118.19
6	27,204.80	544.10	816.14	1088.19	1632.29	2176.38	2720.48	3264.58
7	28,318.96	566.38	849.57	1132.76	1699.14	2265.52	2831.90	3398.28
8	30,843.86	616.88	925.32	1233.75	1850.63	2467.51	3084.39	3701.26
9	37,415.10	748.30	1122.45	1496.60	2244.91	2993.21	3741.51	4489.81
10	41,947.79	838.96	1258.43	1677.91	2516.87	3355.82	4194.78	5033.73
11	49,146.44	982.93	1474.39	1965.86	2948.79	3931.72	4914.64	5897.57
12	53,306.34	1066.13	1599.19	2132.25	3198.38	4264.51	5330.63	6396.76
13	56,824.12	1136.48	1704.72	2272.96	3409.45	4545.93	5682.41	6818.89

Such increases shall be reflected seperately on paysheets and payslips and will continue to form part of an employee's basic earnings

Provided that employers may at their discretion, and when they are paying in excess of the minimum wage still pay a service increment based on the actual wage.

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Declaration

The employer's organisation and the trade union, having arrived at the agreement set forth herein, the undersigned officers of the Council hereby declare that the foregoing is the agreement arrived at, and affix their signatures thereto.

Signed at Harare, this 19th May, 2021.

M. C. KARE,
Chairperson,
National Employment Council for the Mining Industry.

S. PAPIAS,
Acting President,
Associated Mine Workers Union of Zimbabwe.

C. CHIBAFA,
Vice President,
Chamber of Mines of Zimbabwe.

T. S. KABOTE,
General Secretary,
National Employment Council for the Mining Industry.

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